

Dimber Singh v. Dakshinachal Vidhyut Vitaran Ltd.

Allahabad High Court · Division Bench · 4 December 2015 · Writ-C No. 65595 of 2015 · **Writ disposed; 6.5 objection to be decided in three weeks**

HEADNOTE

The petitioner confined the writ to a direction that his objection under clause 6.5 of the Electricity Supply Code, 2005 be decided. The High Court disposed of the petition by directing the licensee to decide that objection expeditiously, preferably within three weeks of a certified copy being filed, and recorded that merits had not been adjudicated and would be examined by the competent authority in accordance with law.

FACTUAL SUMMARY

Dimber Singh filed a writ petition against Dakshinachal Vidhyut Vitaran Ltd. At the hearing he confined relief to a direction that an objection already lodged before respondent no. 2 under clause 6.5 of the Electricity Supply Code, 2005 be decided. Counsel for the distribution company stated that an appropriate decision would be taken on the objection. The Court did not examine the underlying billing dispute or the contents of the objection.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

decision of clause 6.5 objection

HOLDING

Where the consumer's sole prayer is that an objection already filed under clause 6.5 be decided, the writ may be disposed of by directing the licensee to decide that objection expeditiously, preferably within three weeks of a certified copy being filed, without adjudicating the merits, which the competent authority is to examine in accordance with law.

¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS OF THE CLAUSE 6.5 OBJECTION

The Court expressly recorded that it had not adjudicated the merits, which the competent authority was to examine in accordance with law. ¶ 1